

PASSED

CHICKASAW TRIBAL LEGISLATURE

**Permanent Resolution Number 13-18
Language for Article A of Title 2 of Chapters 10 and 11
of the Chickasaw Nation Code**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, when it adopted the Chickasaw Nation Code, the Chickasaw Tribal Legislature reserved Article A of Title 2 of Chapters 10 and 11 for the development of regulations pertaining to tribal boards, agencies and commissions, and

WHEREAS, it has become necessary to create certain portions of that article, title and chapter to meet the expanding needs of tribal boards, agencies and commissions.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby adopts the following provisions, to be codified in the Chickasaw Nation Code as indicated, unless it creates a conflict in numbering:

**Title 2
Chapter 10 and 11
Article A. General Provisions**

Section 2-1001 Applicability of This Article

The provisions of this article shall apply to all members of all boards, agencies and commissions created by act of the Chickasaw Tribal Legislature or by act of the Governor; provided, that such positions shall be subject to the provisions of this article only if such positions are appointed by the Governor with the advice and consent of the Legislature in accordance with the provisions of Article XI, Section 2 of the Constitution.

Section 2-1002 Written Oath of Office

All members of all boards, agencies and commissions to which this Article shall apply, shall, upon the date of assuming their position as a member of that board, agency or commission, herein defined as the date of the first official meeting of that board, agency or commission after such member has been appointed by the Governor subject to the advice and consent of the Chickasaw Tribal Legislature and which they attend, shall file in the Office of the Governor or a written and signed

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Oath of Office, the wording of which shall be:

I, (name), do solemnly swear (or affirm) that I will support, obey and defend the Constitutions of the Chickasaw Nation and the United States of America, and will discharge the duties of my office with fidelity, so help me God.

Such Oath of Office shall contain a place for that member to sign his or her name. Each such Oath of Office shall be dated with the date on which it is signed, and attested to by no fewer than two witnesses. Copies of each such Oath of Office shall be retained in special files created for such purposes and maintained in the Office of the Governor. An Oath of Office shall be administered for each member of each board, agency or commission and for each term of appointment. If a person serves on more than one board, agency or commission, an Oath of Office must be completed for each such office held. Existing written and signed Oaths of Office forms already on file at the time of the adoption of this Act shall be considered fully executed for purposes of this section.

Section 2-1003 Compensation

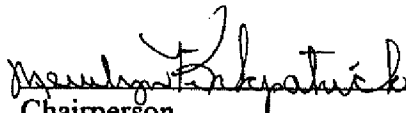
Each member of an official board, commission or agency of the Chickasaw Nation to which the provisions of this Article shall apply as contained and defined in Section 2-1000, shall be eligible for compensation in the form of per diem and travel expenses as are normally allowed for regular, full-time tribal employees. Claims for such expenses and allowances shall be filed in accordance with the normal procedures for such claims and which are normally utilized by regular, full-time employees of the Chickasaw Nation.

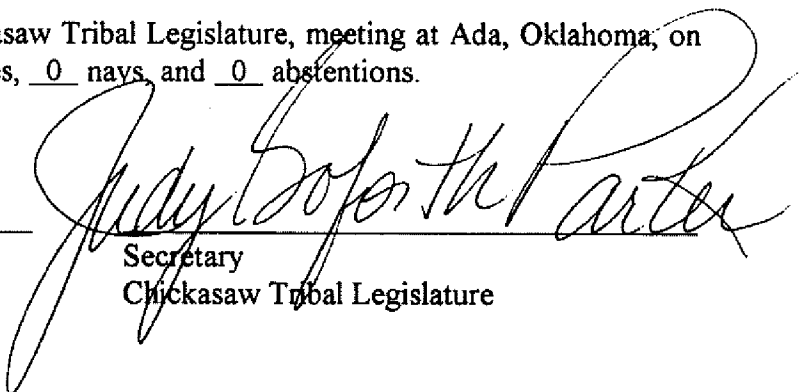
- (A) However, any time that such board, commission or agency shall meet to conduct its regular or special meetings, all members shall be entitled to travel expenses and per diem at the rate normally allowed for travel or per diem in the area in which the meeting is conducted, regardless of the amount of time required for such meeting.
- (B) Members of boards, commissions and agencies which are, as a course of their normal duties and/or functions, involved in meetings or tasks which last longer than four consecutive hours, allowing for normal breaks for meals or other purposes, are entitled to compensation for their time at the rate of \$10 per hour, in addition to any compensation which might be received in the form of per diem and travel expenses. The administrative staff assigned to each such board, agency or commission shall be responsible for completion of paperwork for such compensation in accordance with the normal procedures used for regular, full-time tribal employees. Should no such staff be assigned to such board, agency or commission, the Office of the Governor shall provide such services for those affected members.

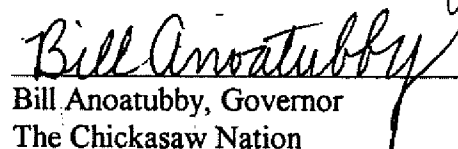
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All persons subject to the provisions of Section 2-1000 as of August 1, 1996 shall be compensated in accordance with Section 2-1003 which shall be retroactive to August 1, 1996.

Executed in Regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on September 20, 1996, by a vote of 13 ayes, 0 nays, and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: SEP 20 1996

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 13-18 Language for Article A of Title 2 of Chapters 10 and 11 of the Chickasaw Nation Code

Explanation: This resolution adds language to an article included in Title 2 of Chapters 10 and 11 of the Code of the Chickasaw Nation. That article had been reserved and contains no language at this time. The language drafted for this resolution was done to meet the request of Legislators for compensation to be paid to members of the Chickasaw Nation Election Commission, and is inclusive to allow for payment to be made to members of other boards, agencies and commissions of the Chickasaw Nation. It requires compliance with normal policies and procedures for payment of per diem and travel allowances, and provides for responsible parties to file such requests and claims.

Requested By: Governor Bill Anoatubby

Presented By: Rena Duncan, Chairman
Legislative Committee